

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 2001 of 1998

Md. Abdul Gani Khan

...Appellant

-Versus-

The State and another

...Respondents

No one appears.

...For the Appellant

Mr. S.M. Golam Mostofa Tara, D.A.G with

Mr. A. Monnan (Manna), A.A.G with

Mr. Md. Shaifour Rahman Siddique Saif, A.A.G

...For the State

Mr. A.K.M. Fazlul Hoque, Advocate

...For respondent, No. 2

Heard on 21.05.2023 and 15.06.2023

Judgment delivered on 27.07.2023

This appeal under Section 10 of the Criminal Law Amendment Act, 1958 (Act No. XL of 1958) is directed against the judgment and order dated 29.06.1998 passed by Divisional Special Judge, Barisal in Special Case No. 4 of 1997 convicting the appellant under Section 409 of the Penal Code, 1860 read with Section 5(2) of the Prevention of Corruption Act, 1947 and sentencing him under Section 409 of the Penal Code, 1860 to suffer rigorous imprisonment for 7(seven) years and fine of Tk. 55,600, in default, to suffer rigorous imprisonment for 1(one) year and also sentencing him under Section 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947) to suffer rigorous imprisonment for 5(five) years and to pay a fine of Tk. 10,000, in default, to suffer rigorous imprisonment for 6(six) months more which will run concurrently.

The prosecution case, in short, is that a seven-member committee was formed headed by accused Md. Abdul Gani Khan, Member of Raypasha Karapur Union for the reconstruction of the road from Roiya Bridge to Nabagram road under the Kabikha programme for the year 1992-1993. Out of 30.530 metric tons of wheat allotted for the said project, the accused as Chairman of the said project committee had withdrawn 23 metric tons of wheat in three instalments but he completed

the work of only 15.426 metric tons of wheat and misappropriated 7.574 metric tons of wheat valued Tk. 55,593.16. At the relevant time, the value of per metric tons of wheat was 7,340.

P.W. 1 Assistant Inspector Md. Shamsul Huq of the Bureau of Anti-Corruption, Barishal took up the investigation of the case. During the investigation, he visited the place of occurrence, seized the alamsats, recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898 and found prima facie truth of the allegation made against the accused persons. He obtained permission from the authority for submitting the charge sheet and submitted charge sheet on 28.09.1996 against the appellant and another under Section 409 of the Penal Code, 1860 and 5(2) of the Prevention of Corruption Act, 1947.

During the trial, the charge was framed on 15.06.1997 against the accused persons under Section 409 of the Penal Code, 1860 read with Section 5(2) of the Prevention of Corruption Act, 1947 which was read over to the accused persons and they pleaded not guilty to the charge and claimed to be tried in accordance with the law. The prosecution examined 12(twelve) witnesses to prove the charge against them. After examination of the prosecution witnesses, the accused persons were examined under Section 342 of the Code of Criminal Procedure, 1898. In reply, the accused persons again pleaded not guilty and declined to adduce any witness.

P.W. 1 Md. Shamsul Huq is the informant as well as the first investigating officer of the case. He stated that he discharged his duty with the Bureau of Anti-Corruption, Barisal from 1993-1994 and he is the informant of the case. The accused Abdul Gani Kha was a member of the Raypasha Karapur Union, Barishal Sadar and 30.530 metric tons of wheat were allotted for the reconstruction of the Roiya bridge to Nabagram road in the year 1992-1993 and the accused was the Chairman of the Project Committee. He had withdrawn 23 metric tons of wheat in three instalments for completion of the project and he completed the work of 15.462 metric tons of wheat and without completing the work of 7.754 metric tons of wheat misappropriated. The Assistant Engineer Shahidul

Islam of Bakerganj Thana took the re-measurement of the project on 01.10.1994 and after re-measurement, he found that the accused completed the work of 15.462 metric tons of wheat. During enquiry, he found the prima facie truth of misappropriation. He recommended for submitting charge sheet. He proved the FIR as exhibit 1 and his signature as exhibit 1/1. During cross-examination, he stated that before lodging the FIR, he examined the final measurement of the work done and the Project Implementation Officer took measurement of the project on 24.04.1993. He denied the suggestion that the accused was falsely implicated in the case.

P.W. 2 Gazi Abdus Salam is an employee of the Bureau of Anti-Corruption, Barisal. He stated that on 16.09.1993 he was posted in the said office and during the enquiry, officer Kamaluddin seized documents in his presence and he signed the seizure list. He proved the seizure list as exhibit 2 and his signature as exhibit 2/1. He proved 27 items of documents as material exhibit I-XXI/II. He admitted that he had no personal knowledge about the seized documents.

P.W. 3 Abdul Khaleque stated that on 02.04.1994 he was posted at the office of the Anti-Corruption, Barisal. On that day, in the presence of the Chairman of the Raypasha Karapur Union Parishad, Inspector Kamaluddin seized the resolution book and after preparing the seizure list, he signed the same. He proved the seizure list as exhibit 3 and his signature as exhibit 3/1. He proved the resolution book as material exhibit XXI/III. He affirmed that he could not say what was written in the resolution book.

P.W. 4 Abdur Rashid Khan is a Guard of Kalaskathi Food Godown. On 20.12.1995, he was also posted in the said office. On that day in his presence, the Investigating Officer seized one L.U.A and one D.O. and the application for withdrawal of the wheat filed by the accused from the godown. He proved the seizure list as exhibit 4 and his signature as exhibit 4/1. He proved the L.U.A as material exhibit XXIX and D.O as material exhibit III and the application for withdrawal of the wheat as exhibit XXXI. The defence declined to cross-examine P.W. 4.

P.W. 5 Md. Abdus Sobhan is the Manager (In-charge) of C.S.D, Barisal. He stated that on 19.12.1995 he was posted as Manager, C.S.D, Barisal. On that day, Inspector Abdur Rashid Howladar seized documents from the Upper Divisional Assistant Saheb Ali and prepared the seizure list. He signed the seizure list. He proved the seizure list as exhibit 5 and his signature as exhibit 5/1. He proved two D.Os and a letter of authority and 3 L.U.A as material exhibits XXXII-XXX/II. The defence declined to cross-examine P.W. 5.

P.W. 6 Kawsar Hossain Talukdar stated that on 01.10.1994 while re-measurement was taken he was present there. After re-measurement, he signed the re-measurement sheet and he also signed the seizure list. He proved the seizure list as exhibit 6 and his signature as exhibit 6/1. The defence declined to cross-examine P.W. 6.

P.W. 7 Md. Kamal Uddin Molla stated that in 1993 he was posted at the District Bureau of Anti-Corruption, Barisal. After that Md. Shamsul Alam filed an application as regards the misappropriation of wheat and rice. The Anti-Corruption Commission appointed him as an enquiry officer. The complaint was registered in the D.A.B Office as E.R No. 19 of 93. He proved the said E.R. as exhibit 7. During the enquiry of the said E.R. on 16.09.1993, he seized documents from the Project Implementation Officer and took his signature. He proved his signature as exhibit 2/2. Subsequently, he signed the seizure list on 02.04.1994. He proved his signature as exhibit 3/2. He admitted that between 21.05.1993 to 02.04.1994, he made the enquiry of the said E.R. and during his enquiry, he did not take the measurement of the project and he also did not inspect the project area.

P.W. 8 A.K.M Ishahaq is the Sub-Assistant Engineer, Barisal and he was the Superintendent of the project namely Raiya Bridge to Nabagram Road. A seven-member committee was formed headed by accused Abdul Gani Khan and accused Mahbub was the Member Secretary of the project. 30.530 metric tons of wheat were allotted for the said project and the accused persons had withdrawn 23 metric tons of wheat. He took the final measurement of the project and the P.I.O and the

U.N.O signed the level book. The accused persons also signed the level book. He prepared the measurement book. The P.I.O, U.N.O and the accused Abdul Gani Khan also signed the measurement book. After lodging the FIR, the neutral measurement was taken by the Thana Engineer, Bakerganj and at the time of measurement, he was present and the accused persons were also present there. After taking measurements, Thana Engineer, Bakerganj submitted a report and as per measurement, the accused persons did not complete the work of 7.574 metric tons of wheat out of 23 metric tons of wheat. He admitted that the accused had taken the soil from the canal for the project and they also took the soil from a distant place to reconstruct the road. He also admitted that the accused persons stated that the cost of the project was increased. The accused had withdrawn a total 15 metric tons of wheat in the first and second instalments. After completing the work of the first and second instalments, he recommended for withdrawal of the wheat of the third instalment.

P.W. 9 Md. Maksud Ali stated that he was posted at Barisal Sadar Thana as a Project Implementation Officer in the years 1992-1993. A project committee was constituted headed by accused Abdul Gani Khan for repairing the Raiya Bridge to Nabagram road. The accused persons had withdrawn 23 metric tons of wheat in 3 instalments. Supervisor Md. Ishaq also measured the project. The accused completed the work for 15.214 metric tons of wheat. The U.N.O had written a letter to the accused to return 7.786 metric tons of wheat. He also stated that he proved the level book as exhibit XXXI/II and his signature as XXXI/III/1. He also signed the measurement book. He proved his signature on the measurement book as XXV/I. He affirmed that the project period was between 26.01.1992 to 15.06.1993. He measured the project on 20.06.1993 and after completion of the project, he also made the inspection. The accused had taken the soil from the canal and distant places to complete the reconstruction of the project. He affirmed that no extra money or wheat was allotted by the Government to complete the project. He denied the suggestion that the accused persons completed the work of 23 metric tons of wheat.

P.W. 10 S.I. Md. Matiar Rahman stated that on 30.04.1994 he was posted at Kotwali Thana, Barisal. On that day, he received the written FIR and he also filled up the FIR form. He proved the FIR form as exhibit 8 and his signature as exhibit 8/1.

P.W. 11 Md. Shahidul Islam is the Thana Engineer, Bakerganj, Barisal. He stated that in 1994 he was posted at Bakerganj. On the request of the District Bureau of Anti-Corruption, on 01.10.1994 he submitted the report after measurement of a project. At the time of measurement, the members of the project committee Mahabub Alam Chowdhury, Md. Farid Hossain were present. The Sub-Divisional Engineer Md. Isahaq was also present there. He proved the forwarding as exhibit 9 and his signature as exhibit 9/1. He proved the measurement sheet as exhibit XILI. During cross-examination, he stated that the Project Chairman was not present at the time of measurement. He admitted that he had shown 15% shortest. He denied the suggestion that at the time of measurement, a part of the project was diluted in the flood water.

P.W. 12 Abdur Rashid Howlader is the Investigating Officer. He stated that the Bureau of Anti-Corruption appointed him as investigating officer to investigate the case. During the investigation, he visited the place of occurrence and recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898. Subsequently, on 19.12.1995, he took up the investigation of the case. Thereafter, he visited the place of occurrence. During the investigation, he seized documents from the C.S.D Godown. He proved his signature as exhibit 5/2. On 20.12.1995 he seized the D.O. from the C.S.D, Barisal and prepared the seizure list. He proved his signature on the seizure list as exhibit 4/2. During the investigation, he recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898. He admitted that to complete the project, the accused had taken the soil from the canal and distant places but he did not scrutinise the same. He admitted that there were seven members of the committee and he did not examine the signature of Mahabub Alam Chowdhury through the handwriting expert.

Mahbub Alam admitted in writing that he had withdrawn 3 metric tons of wheat.

No one appears on behalf of the appellant.

Learned Advocate Mr A.K.M. Fazlul Hoque appearing on behalf of respondent No. 2 submits that the appellant as Chairman of the seven members committee constituted for reconstruction of the Raiya Bridge to Nabagram road had withdrawn 23 metric tons of wheat out of 33.530 metric tons of wheat allotted for completion of the project, but he completed the work of 15.462 metric tons of wheat and misappropriated 7.75 Metric tons of wheat valued at Tk. 55,600. The prosecution witnesses proved the charge against the appellant beyond all reasonable doubt. Therefore, he prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocate Mr. A.K.M. Fazlul Hoque who appeared on behalf of respondent No. 2, perused the evidence, impugned judgment and order passed by the trial Court and the records.

At the very outset, it is noted that the state having filed a supplementary affidavit on 18.07.2023 annexed a report dated 17.07.2023 submitted by the Officer-in-Charge, Airport Thana, Barishal and also annexed the death certificate of appellant issued from the Sher-E-Bangla Medical College, Barisal stating that the appellant died on 22.05.2002.

Under Section 431 of the Code of Criminal Procedure, 1898 every appeal under Section 417 or Section 417A shall finally abate on the death of the accused, and every other appeal under this Chapter (except an appeal from a sentence of fine) shall finally abate on the death of the appellant. In view of the above proposition the sentence of imprisonment passed against the appellant by the trial Court is abated. Since the appeal also relates to sentence of fine the same is required to be disposed of considering the merit of the case.

On perusal of the records, it appears that the project period of Roiya Bridge to Nabagram road was between 31.01.1993-29.04.1993 and after completion of the project, P.W. 8 A.K.M Ishahaq, Sub-Assistant Engineer, Barisal and P.W. 9 Md. Maksud Ali measured the work of the

project on 20.06.1993 and after completion of the work done for the entire wheat, the appellant along with others submitted the master roll which was duly accepted by the Project Implementation Officer and the concerned UNO. After completion of the project, one Md. Shamsul Alam filed a complaint and during the enquiry, P.W. 7 Md. Kamal Uddin Molla seized documents on 16.09.1993 and made the enquiry from 21.05.1993-02.04.1994. During enquiry, he did not take any re-measurement of the project and without taking any re-measurement recommended to lodge the FIR. No explanation has been given by P.W 7 as to how he found the truth of the allegation of misappropriation without taking any re-measurement of the work done. Furthermore, Md. Shamsul Alam who filed the complaint as regards the misappropriation of wheat was not examined by the prosecution.

No allegation was made during the project period stating that the project committee misappropriated the wheat of the project. No allegation was also made by the prosecution that the muster roll submitted by the appellant was not accepted by the P.I.O and the concerned U.N.O. Barisal is a low land area. Admittedly the re-measurement was taken on 01.10.1994 during rainy seasons and after two rainy seasons from the date of completion of the project. P.Ws. 8, 9 and 12 stated that the soil was taken from the canal and distant places to implement the project. It is not possible to re-measure the project site correctly during the rainy season and after two years of completion of the project. At the time of initial measurement by P.Ws. 8 and 9, no shortage was found and after two rainy seasons, P.W. 11 took the re-measurement. Therefore, I am of the view that no correct re-measurement was taken after two years of completion of the project during the rainy season.

In view of the above facts and circumstances of the case, observation, findings and proposition, I am of the view that the prosecution failed to prove the charge against the appellant beyond all reasonable doubt.

The impugned judgment and order of sentence of fine passed by the trial Court against the appellant is hereby set aside and he is acquitted from the charge leveled against him.

In the result, the appeal so far relating to the sentence of imprisonment is abated and the appeal so far relating to the sentence of fine is allowed.

Send down the lower Court's records at once.